IGNIS CARE LIMITED
30 Pipit Walk Hemel Hempstead HP3 0FR

Review Sheet

Last Reviewed 27 Aug 2025 | Last Amended 9 Sep 2024 | This policy will be reviewed as needs require or at the following interval: Annual

Business Impact:	LOW — Minimal action required. Circulate information amongst relevant parties.
Reason for this Review:	Scheduled review
Changes Made:	No
Summary:	This policy has been reviewed with no significant changes. References have been checked and updated with a new link to the updated accessible information standard guidance.
Relevant Legislation:	• The Care Act 2014 • Care Quality Commission (Registration) Regulations 2009 • Equality Act 2010 • The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 • Health and Safety at Work etc. Act 1974 • Human Rights Act 1998 • Mental Capacity Act 2005 • Mental Capacity Act Code of Practice • Mental Health Act 1983 • Data Protection Act 2018 • UK GDPR • The Consumer Rights Act 2015
	• Author: The Care Quality Commission, (2026), Guidance and regulation [Online] Available from: https://www.cqc.org.uk/guidance-regulation [Accessed: 27/08/2025] • Author: Skills for Care, (2024), Supporting people with challenging or distressed behaviour [Online] Available from: https://www.skillsforcare.org.uk/Developing-your-workforce/Care-topics/Supporting-people-with-challenging-or-distressed-behaviour/Supporting-people-with-challenging-or-distressed-behaviour.aspx [Accessed: 27/08/2025] • Author: Competition and Markets Authority, (2015), Unfair contract terms guidance - Guidance on the unfair terms provisions in the Consumer Rights Act 2015 [Online] Available from: https://www.gov.uk/government/publications/unfair-contract-terms-cma37 [Accessed: 27/08/2025] • Author: Information Commissioner's Office, (2024), Guide to the General Data Protection Regulation [Online] Available from:

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Underpinning Knowledge:	https://ico.org.uk [Accessed: 27/08/2025] • Author: Department of Health, (2025), Statutory guidance: Care and support statutory guidance [Online] Available from: https://www.gov.uk/government/publications/care-act-statutory-guidance/care-and-support-statutory-guidance [Accessed: 27/08/2025] • Author: NHS England, (2025), Accessible Information Standard [Online] Available from: https://www.england.nhs.uk/accessible-information-standard/ [Accessed: 27/08/2025] • Author: Local Government and Social Care Ombudsman, (2024), Resources for care providers [Online] Available from: https://www.lgo.org.uk/adult-social-care/resources-for-care-providers [Accessed: 27/08/2025] • Author: Social Care Institute for Excellence, (2024), Dignity in care [Online] Available from: https://www.scie.org.uk/providing-care/dignity-in-care/ [Accessed: 27/08/2025]
Suggested Action:	• Encourage sharing the policy through the use of the QCS App
Equality Impact Assessment:	QCS have undertaken an equality analysis during the review of this policy. This statement is a written record that demonstrates that we have shown due regard to the need to eliminate unlawful discrimination, advance equality of opportunity and foster good relations with respect to the characteristics protected by equality law.

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1. Purpose

1.1 To ensure full consideration of the Human Rights and consumer rights of the Service User when considering the termination of their contract with IGNIS CARE LIMITED.

1.2

Key Question	Quality Statements
RESPONSIVE	QSR1: Person-centred care
SAFE	QSS3: Safeguarding
SAFE	QSS4: Involving people to manage risks QSS5: Safe environments
WELL-LED	QSW5: Governance, management and sustainability

1.3 Relevant Legislation

- The Care Act 2014
- Care Quality Commission (Registration) Regulations 2009
- Equality Act 2010
- The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
- Health and Safety at Work etc. Act 1974
- Human Rights Act 1998
- Mental Capacity Act 2005
- Mental Capacity Act Code of Practice
- Mental Health Act 1983
- Data Protection Act 2018
- UK GDPR
- The Consumer Rights Act 2015

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2. Scope

2.1 Roles Affected:

- All Staff
- Registered Manager

2.2 People Affected:

- Service Users

2.3 Stakeholders Affected:

- Family
- Advocates
- Representatives

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- Commissioners
- Housing Provider Partners

3. Objectives

3.1 To balance the rights of Service Users whose contract is being considered for termination, with those of other affected Service Users and IGNIS CARE LIMITED.

3.2 To ensure that IGNIS CARE LIMITED staff understand their responsibilities to the Service Users.

3.3 To ensure that Service Users have a fair framework when IGNIS CARE LIMITED considers termination of contract.

4. Policy

4.1 Consent to Support and Terms and Conditions of the Service

Before Support starts, every Service User is supported with information in an appropriate format about the service they will receive and the terms and conditions of the service.

- Access and support is tailored to the individual to support understanding of the service of IGNIS CARE LIMITED and the terms and conditions of the Support
- IGNIS CARE LIMITED will only accept the contract between Service User and IGNIS CARE LIMITED if the contract is signed by the Service User, or their legal representative with informed consent

4.2 IGNIS CARE LIMITED will ensure that every reasonable effort is made to continue a harmonious contract between IGNIS CARE LIMITED and the Service User. There are specific circumstances where a termination of contract may be necessary. These include:

- IGNIS CARE LIMITED cannot meet the assessed needs of the Service User, this may include changes in medical care, personal care, or mental health for which Ignis Care Limited is not registered to provide such support
- Behaviour which compromises the safety and/or the wellbeing of other Service Users and/or employees. This includes but is not limited to violence and aggression, either verbally or physically towards staff, from either the Service User or their family or friends
- Ongoing failure of the Service User to pay the agreed fees
- A change in the financial circumstances of the Service User leaving them unable to meet the agreed fees, where IGNIS CARE LIMITED is unable or unwilling to adjust the fee to an affordable level
- Where IGNIS CARE LIMITED are no longer able to operate the service

4.3 Consideration of Other Forms of Action

In any circumstance where a termination is considered, IGNIS CARE LIMITED will have:

- Exhausted and documented all other remedies
- Involved and discussed the issues with the Service User, legal representatives, and those the Service User (with capacity and informed consent) wishes to involve,

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identifying alternative remedies

- Discussion with Social Services or commissioning bodies to explore alternative remedies
- Given adequate warning of possible termination of contract, raising the issues that have led to the possibility of termination of the contract, to engage in meaningful negotiation to identify and carry out alternative remedies
- Following assistance and support to identify suitable alternate services

4.4 Termination of Contract

Where termination of contract is the only reasonable option after consideration, IGNIS CARE LIMITED will ensure a reasonable notice period of at least 28 days, unless safety issues require a swifter departure from the service.

IGNIS CARE LIMITED will work in partnership with our Housing Provider and Commissioning Team Partners to ensure that any Termination of Contract is managed appropriately and takes into account the effect this may have on Tenancy agreements.

4.5 Termination of Tenancy

IGNIS CARE LIMITED will work in partnership with our Housing Provider Partners to ensure that any Termination of Tenancy is managed appropriately and smoothly in order to maintain continuity of care and support for the Service Users involved.

4.6 All Service Users, or their legal representatives concerning termination of contract, will receive:

- Information relating to termination, which will be given in an accessible format at every stage where appropriate to do so
- Appropriate support to understand the information being conveyed
- Sufficient time to understand
- Reasonable time to put measures in place to organise additional Support arrangements
- Written confirmation

4.7 Dignity and Respect

IGNIS CARE LIMITED respects every individual and will continue to treat Service Users with dignity and respect, and will support their assessed needs until a smooth transition is complete.

IGNIS CARE LIMITED will work with the Service User, their family/representatives and other professionals to ensure transition to another provider.

4.8 Complaints

Where the Service User wishes to make a complaint about a termination, we will support them to do so. IGNIS CARE LIMITED will ensure that the Service User is provided with information in an accessible format so that they understand how to escalate their complaint externally, either to the commissioner such as the The relevant Local Authority varies depending on the service user’s home location. The correct Local Authority is recorded in the service user’s Care Plan and PASS profile. or The Local Government and Social Care Ombudsman
PO Box 4771
Coventry CV4 0EH
Tel: 0300 061 0614
Email: advice@lgo.org.uk

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Website: https://www.lgo.org.uk/
Complaint form: https://www.lgo.org.uk/complaint-form .

4.9 Evaluation

IGNIS CARE LIMITED will evaluate each termination of contract to check if improvements can be made and update the process accordingly.

5. Procedure

5.1 Roles and Responsibilities

- Mrs Miriam Chengeto Cummings is responsible for this policy and its distribution
- Every member of IGNIS CARE LIMITED staff has a responsibility to treat every Service User with dignity and respect, regardless of issues which may lead to a termination of contract
- IGNIS CARE LIMITED staff will report any incidents in the usual way, to ensure a thorough audit of any connecting issues

5.2 Review of Care Plan

- Mrs Miriam Chengeto Cummings must conduct a full review of the Service User's Care Plan
- Mrs Miriam Chengeto Cummings will objectively identify and note any issues which appear to be placing a question over the appropriateness and ability of IGNIS CARE LIMITED to provide Support for the Service User to meet the agreed Care Plan

Capacity

Where Service User have been assessed as lacking capacity as part of an agreed Care Plan, IGNIS CARE LIMITED will ensure that the principles of the Mental Capacity Act 2005 are followed including those decisions based on Best Interests.

5.3 Accessible Information

Mrs Miriam Chengeto Cummings must ensure that tenancy agreements and information regarding the support from staff is relevant to each Service User's individual communication needs.

5.4 Step 1: Discussion to Potentially Avoid Termination

Mrs Miriam Chengeto Cummings must consult with the Service User on the listed issue(s), with the objective of identifying courses of action which may avoid contract termination.

The **Pro-forma Letter 1** should be used to open formal discussions at the same time as verbal notification, where the Service User should be supported and given time to understand its contents where the Service User has capacity.

5.5 Step 2: Further Discussions - Inclusion of family, legal representatives, advocates and social services

If consultation with the Service User fails to identify alternatives to termination, ask the Service User for their consent to consult with, as appropriate to the circumstances:

- The Service User's family
- Legal representatives

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- An independent advocate
- Social Services
- Housing Partners

This is with the objective of identifying courses of action which avoid contract termination.

5.6 Step 3: Alternative Placement

If consultation with the Service User and others fails to identify alternative courses of action, consult with all parties to identify alternative providers and services.

5.7 Step 4: Negotiation of Placement and Termination Date

- Mrs Miriam Chengeto Cummings will support the Service User (or their representative) to identify a suitable alternative and make arrangements for a change of service
- Negotiate the termination date with the Service User or advocate in order to safeguard the Service User's wellbeing, while achieving the move to the alternative service
- The **Pro-forma Letter 2** should be used to serve final notice

5.8 Information

All information and meetings with the Service User and other stakeholders must be documented by Mrs Miriam Chengeto Cummings and stored appropriately, complying with data protection law.

Mrs Miriam Chengeto Cummings will evaluate the information and provide the salient facts and reasoning in the appropriate letter to the Service User and their legal representative.

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6. Definitions

6.1 Termination of Contract

- To cease a legal written agreement (contract) with or without consent to cease, before the contract end date

7. Key Facts - Professionals

Professionals providing this service should be aware of the following:

- IGNIS CARE LIMITED operates a termination of contract policy where, when serious issues relating to terms and conditions of the service being provided have arisen, all other options are exhausted before termination is considered
- IGNIS CARE LIMITED will do all they legally can in securing an alternative solution before the point of termination. This may mean working with professionals to find a support solution or an alternative service
- IGNIS CARE LIMITED will always ask for the Service User or their representative's consent to look for alternate services

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- IGNIS CARE LIMITED will ensure they work in partnership with professionals for a smooth transition when a termination of contract has occurred

8. Key Facts - People Affected by The Service

People affected by this service should be aware of the following:

- A full list of what might end your contract is in your Service User Guide. We can support you to find and understand these
- When you receive services from IGNIS CARE LIMITED, you consent to certain conditions. We will tell you about what action we might take if those conditions are broken, or if the service has a change of circumstances
- IGNIS CARE LIMITED will think very carefully if a condition has been broken, we will think about your rights, and the rights of others involved
- We will always try and resolve issues without ending your contract, but some conditions will mean it is unsafe or not possible to resolve
- We will always make sure you are treated with dignity and respect and have an alternative if we need to end your contract. We will speak to The relevant Local Authority varies depending on the service user's home location. The correct Local Authority is recorded in the service user's Care Plan and PASS profile., you and your representatives to support you with next steps and ask for your consent to do this
- If there is an issue that may end your contract, we will let you know and give you time to resolve it

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Further Reading

Paradigm - Reach Standards:

https://paradigm-uk.org/what-we-do/reach-support-for-living/

Outstanding Practice

To be "outstanding" in this policy area you could provide evidence that:

- Consistent evidence that an alternative arrangement has been made to the satisfaction of the Service User which prevents the need for complete termination
- Good partnership working which results in evidenced smooth transitions for Service User to other services
- There is evidence that the service has taken steps to ensure that support remains where possible. This may include enhanced training for staff, liaising with the housing provider and an increased relationship with health professionals before any plans are made to withdraw the support package

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- The wide understanding of the policy is enabled by proactive use of the QCS App

Forms

The following forms are included as part of this policy:

Title of form	When would the form be used?	Created by
Pro-forma Letter 1 - Formal Notice - AR58	When giving formal notice to terminate a contract.	QCS
Pro-forma Letter 2 - Final Notice - AR58	To serve final notice to a Service User.	QCS

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Pro-forma Letter 1 - Formal Notice - AR58

This pro-forma letter outlines a suggested format. Please add specific details as indicated and edit it to match the particular circumstances.

[Date]

Dear **[Service User or the person who signed the Contract on their behalf]**,

We have informally discussed with you the difficulties which we are having in continuing to provide our services to **[Service User Name or "you"]**.

The reason(s) for this is/are that **[state here, clearly and objectively, the reasons. Avoid statements which cannot be supported by unambiguous evidence. Do not use inflammatory language or use an accusatory tone.]** We will provide you with the notes, statements and records which we have gathered in order to identify and clarify the situation which we wish to discuss.

We wish to avoid the possibility of having to terminate the Service Contract, and therefore would like to explore with you and if you agree, your family and/or advocate and Social Services, all of the alternative courses of action which may be open to you and us in order to alleviate the problem.

To begin this process, will you please contact Mrs Miriam Chengeto Cummings to arrange an initial discussion. We anticipate that further meetings involving other advisors may be required following that meeting, to assist us in reaching a mutually satisfactory conclusion.

Please be assured that our objective is to avoid considering the termination of your Service Contract, but in the event that we are jointly unable to avoid that course of action, we will work closely with you and your representatives to find and arrange a suitable alternative placement.

Yours sincerely,

Mrs Miriam Chengeto Cummings
For and on behalf of IGNIS CARE LIMITED

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Pro-forma Letter 2 - Final Notice - AR58

This pro-forma letter outlines a suggested format. Please add specific details as indicated and edit it to match the particular circumstances.

[Date]

Dear **[Service User or the person who signed the Contract on their behalf]**,

Termination of Service Contract

With regret, following our discussions with you and your representatives regarding the difficulties which we have in continuing to provide your service, we have reached the point where we have no alternative but to give you **[state the period of notice being given]** notice of the termination of your Service Contract.

We have reached this conclusion because we are unable to continue to provide for your safety and wellbeing **[edit this statement carefully – your particular circumstance may be related to staff safety, in which case use a phrase similar to "We are unable to provide a safe working environment for our employees".]** We are legally obliged to provide safe **[service or employment]** and following our joint discussion of alternative courses of action we do not consider that we can meet our legal obligations and are therefore left with no alternative except to serve notice.

We will work intensively with you, your representatives, and Social Services to find a suitable alternative provider and service for you before the end of the notice period. If you wish to transfer to that new service before the expiry of the notice, we of course have no objection and will not charge beyond your actual transfer date.

Should you feel that circumstances change before the expiry of the notice, or your move to an alternative service, and you feel that the change may affect your termination notice, please contact the Manager immediately to discuss the matter.

Yours sincerely,

For and on behalf of IGNIS CARE LIMITED

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